

DISSENTING OPINION BY M. NEGULESCO.

[*Translation.*]

The undersigned, whilst concurring in the Judgment upon the merits, differs from the majority of the Court as regards the question of jurisdiction.

The Court has laid down the principle, by virtue of Article 72, paragraph 3, of the Geneva Convention, that its jurisdiction extends to Articles 65 to 71 which precede Article 72, and not to the articles which follow that article. Now the German Application, which is based on Article 72, paragraph 3, of the Convention, must, in view of the written Reply and the arguments put forward by the Agent for the German Government in the course of the oral proceedings, be considered as relating solely to the interpretation of Articles 74, 106 and 131 of the Convention, and this must lead to the Court's ruling that it has no jurisdiction.

Article 131 being closely related to Article 69 of the Convention, the Polish Government in its Counter-Case observes that the German Government, in its Case, makes no mention of Article 69: "and yet, the Polish Counter-Case states, Article 72, paragraph 3, upon which the Application is founded, refers to the articles which precede and not to those which follow" (*translation*).

The plea to the jurisdiction having been mentioned in the statement of reasons of the Counter-Case, it cannot be said that in the final submission of the Counter-Case, by the words: *de débouter le Gouvernement de sa demande*, the Polish Government had renounced the plea. It is true that the final submission of the Counter-Case should in the first place have mentioned that the Court should rule it had no jurisdiction and, subsidiarily, that the German Government's claim be dismissed.

The final submission of the Counter-Case should have been construed in the light of the grounds upon which this submission is based, and it should have been looked upon as subsidiary and only arising if the Court declared it had jurisdiction.

Moreover, this hesitation on the part of the Polish Government to invoke the plea in the argumentation and not in the submissions of the Counter-Case can be explained by the indefinite character of the German Application, which, while asking for an interpretation of Articles 74 and 131 of the Convention, at the same time referred to Articles 65, 68, 72, paragraph 2, which might have conferred jurisdiction upon the Court in the event of a dispute relating to these articles.

It is the German Reply which clearly brings out that the Application only refers to the construction of Articles 74 and 131 of the Geneva Convention, and consequently it is from that moment onward that no doubt could any longer subsist in the mind of the Polish Government as to the absence of the Court's jurisdiction. Those are the grounds which led the Polish Government in the Rejoinder to plead to the jurisdiction of the Court.

The Agent for the German Government, by virtue of Article 38 of the Rules of Court, invoked in his oral pleadings the lateness of the submission of the plea, that plea not having been raised in the Counter-Case. The true view should be that the plea to the jurisdiction cannot be considered as submitted too late and that it can be raised at whatever state and at whatever stage of the proceedings. The plea to the jurisdiction in a suit submitted by application is not a question of procedure but a question relating to the merits, for the Court must consider the convention between the Parties in order to know whether the dispute submitted does or does not come within the limits defining its jurisdiction.

The fact of "pleading the merits" does not imply that the defendants have given up their plea to the jurisdiction, particularly when it was raised in the Rejoinder and in the course of the oral pleadings as a plea joined to the merits; otherwise one would be obliged to consider the defendants, who on principle may raise a plea to the jurisdiction in the course of the oral proceedings (because—the Court has laid it down—there is no forfeiture under Article 38), as being debarred from doing so in view of a presumption of an acceptance of the jurisdiction of the Court. It would be difficult to see what object there would be in the right of raising the plea to the jurisdiction at any stage of the proceedings if this right were

rendered nugatory by a presumption that its exercise had been renounced and that the jurisdiction of the Court had been accepted.

The jurisdiction of the Court cannot be assimilated to that of a municipal court. The jurisdiction of the Court is not general, it is strictly limited by the will of the States which have brought the dispute before it. In case of doubt as to whether jurisdiction exists, it must be inferred that the Court has no jurisdiction.

But even before municipal courts there is no presumption of forfeiture of a right unless a specific provision to that effect exists in the code of procedure (paragraphs 38 *et seq.* of the German Procedural Code). Under several legal systems, a distinction is drawn between a plea to the jurisdiction and a plea to the admissibility of that particular judicial remedy, the latter being capable of being raised at any stage of the proceedings. The plea to the jurisdiction before the Court cannot be assimilated to a plea to the jurisdiction *ratione personæ*. It more nearly resembles a plea *ratione materiæ*, or even more a plea to the admissibility of the particular judicial remedy; and consequently the defendant cannot be compelled under penalty of forfeiture to raise the plea *in limine litis*. In order that such an obligation may be imposed upon the defendant, a specific provision must exist either in the Statute or in the Rules of Court to that effect; but failing such provision such a penalty cannot be applied. It cannot consequently be said that the Agent for the Polish Government has pleaded the merits without any reservations, because he did more: he raised the plea in his Rejoinder and maintained that plea in his oral pleadings.

Moreover, a tacit acceptance of the jurisdiction of the Court which can be deduced merely from the documents of the proceedings is contrary to the provisions of the Statute and of the Rules of Court, which only recognize two methods for allowing the Court to take cognizance over any matter: an application and a special agreement. Article 36 of the Statute lays down that the jurisdiction of the Court extends to all matters specially provided for in treaties and conventions in force, as well as to all cases "which the Parties refer to it".

It is by process of unilateral application that the Court is rendered cognizant, in the event of its having jurisdiction by virtue of treaties and conventions in force. On the other hand, it is by process of special agreement that the Court is rendered cognizant in cases "which the Parties refer to it". That these words refer to special agreement drawn up in due form and not to successive acts in the proceedings, is clearly shown on the one hand by Article 40 of the Statute, which lays down that "cases are brought before the Court, as the case may be, either by the notification of the special agreement, or by a written application..." and, on the other hand, by Articles 37 *et seq.* of the Rules of Court, which define the conditions and the formalities to be fulfilled when a suit is submitted by application or by notification of the special agreement.

In the light of these clauses, it is difficult to say that the Court, which has no jurisdiction to give judgment on the Application of the German Government, which is based on Article 72, paragraph 3, of the Geneva Convention and relates to the interpretation of Articles 74, 106 and 131 of the Convention, has acquired jurisdiction by the tacit consent of the Parties inferred from the action taken in the successive stages of the proceedings, and without any special agreement in due form. Moreover, before it is possible to speak of an agreement giving the Court jurisdiction over and above the jurisdiction limited by Article 72, paragraph 3, of the Geneva Convention, it must be proved that the intention of Germany and Poland was to accept such jurisdiction. Now the German Application, which relates to the interpretation of Articles 74, 106 and 131 of Division II of the Convention, is based on the mistaken idea that Article 72, paragraph 3, bestows on the Court compulsory jurisdiction for the interpretation of those articles. Poland, on the contrary, has not made this mistake, for in her Counter-Case she observes that the Court has no jurisdiction under Article 72, paragraph 3, in regard to the articles which follow that article (Division II). It is, therefore, difficult to say that there has been an agreement between the Parties conferring on the Court jurisdiction over and above that derived from Article 72, paragraph 3, of the Convention.

Those who argue that the Parties have tacitly agreed to transform the suit brought by application into a suit submitted by agreement, find it impossible to say at what moment this transformation took place.

The Court seems to hold that this moment was the filing of the Counter-Case. It therefore believes that by a unilateral expression of intention on the part of the Respondent, the whole of the proceedings instituted by the German Application have been transformed into proceedings instituted by agreement, without troubling to ascertain whether the Applicant has expressed a similar intention. The Court, having adopted this point of view, declares that the objection raised by the Respondent in the Rejoinder has been made too late; but it admits that the Respondent might have raised the objection to the jurisdiction by making reservations in his oral argument in the suit; this amounts to saying that, by a unilateral expression of intention on the part of the Respondent, the effect of the agreement tacitly concluded with the filing of the Counter-Case might have been nullified.

But even if it be held that an agreement has been created by the fact that the Respondent has agreed to argue the merits of the Application, since the latter was based on Article 72, paragraph 3, of the Convention, it should be established that the agreement between the Parties has the effect of extending to Division II of the Third Part the compulsory jurisdiction bestowed on the Court by Article 72, paragraph 3, which only covers Division I of the Convention.

This extension of jurisdiction is not admissible owing to the special nature of Part III of the Convention. Article 72, paragraph 3, reproduces the terms of Article 12, paragraph 3, of the Treaty of Minorities. This Treaty, which was concluded on June 28th, 1919, between the United States, the British Empire, France, Italy and Japan, on the one hand, and Poland on the other hand, was extended to Upper Silesia by the Decision of the Conference of Ambassadors of October 20th, 1921. The Treaty of Minorities for Upper Silesia was also placed under the guarantee of the League of Nations.

In these circumstances, the power bestowed on Members of the Council under Article 72, paragraph 3, of the Convention can only be extended to apply to another Division in

virtue of the same agreements which are necessary to establish this power. Consequently, this power cannot be extended to cover Division II by a tacit agreement between Germany and Poland.

Again, such an extension of the power of Members of the Council enabling them also to bring before the Court differences of opinion in regard to Division II of Part III, would diminish the jurisdiction of the Council to *decide* upon (Article 147) the interpretation and application of provisions of Part III of the Convention (Article 148), more especially seeing that, as regards Division II, the Council has exclusive jurisdiction. But it is obvious that such a diminution of the Council's jurisdiction cannot result from a tacit agreement between Germany and Poland and that the extension of the Court's jurisdiction to include Division II is inadmissible.

Even if it were possible to effect a modification of the Convention at the will of Germany and Poland, Germany would have to appear in the suit *proprio nomine* and not, as in the present case, in her capacity as a Member of the Council (under Article 72, paragraph 3); this renders it quite impossible for her to effect a modification of the Convention of Geneva concluded between Germany and Poland.

Again, it is impossible to speak of an agreement to extend the Court's jurisdiction beyond what is laid down in the Geneva Convention, because the German Application invokes the Court's jurisdiction under Article 72, paragraph 3, of the Convention, and Germany has never contended that an agreement in regard to jurisdiction exists over and above the provisions of that article.

Even supposing that a tacit agreement regarding the Court's jurisdiction had arisen between the Parties as a result of the filing of the Counter-Case, it would be easy to show that another tacit agreement, overcoming the first, had arisen during the oral proceedings.

In accordance with Article 43 of the Statute and of the Rules, proceedings before the Court are divided into two phases, one written and the other oral, and the agreement is to be sought for and considered in the final submissions of the Parties. Thus, in the Chorzów case, the Court recorded

the amendment of the submissions contained in the Case and Counter-Case, effected by the final submissions presented to it.

The Agent for the German Government, in his oral statement of the case, alleged, relying on Article 38 of the Rules, that the objection to the jurisdiction was submitted too late; but in his reply on March 17th, 1928, he admitted that there was no such thing as an objection being submitted too late under Article 38, and that the question of the Court's jurisdiction could be considered *ex officio* at any stage of the proceedings: "I am aware that you, the Judges of the Court, can investigate *ex officio* the question of jurisdiction at every stage of the proceedings."

The Agent for the Polish Government has explained the reason for the late submission of the objection: "You see, Gentlemen, I have not raised this objection as a preliminary objection; I have joined it to the merits of the case."

In these final submissions, the German Government persisted in its erroneous belief that the Court had jurisdiction under Article 72, paragraph 3; the Polish Agent, on the other hand, submitted that the Court had no jurisdiction. This proves that the Parties were unaware of the existence of a tacit agreement regarding the Court's jurisdiction and that their mutual intention was to abide within the limits of the jurisdiction established by Article 72, paragraph 3, of the Geneva Convention.

(Signed) DEMETRE NEGULESCO.
